

24NWCV05089 24NWCV05089

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CHRISTOPHER GUATLO v. KIA AMERICA, INC., ET AL.

CASE NO.: 24NWCV05089

HEARING: 08/20/2026 @ 9:30 AM

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TENTATIVE ORDER

I.

Plaintiff Christopher D. Guatlo's motion

to compel Defendant to produce its PMK for deposition with production of documents is GRANTED.

II.

Plaintiff's

request for monetary sanctions is GRANTED in the amount of \$1,560 against Defendant and its counsel of record.

Moving party to give notice.

Plaintiff Christopher D. Guatlo (Plaintiff) moves to compel

Defendant Lou Sobh Cerritos Saturn, Inc. dba Kia of Cerritos (Defendant) to produce a person most knowledgeable (PMK) to appear for deposition with production of documents.

Background

On November 17, 2025, Plaintiff filed this lemon law action against Defendants Kia America, Inc., Lou Sobh Cerritos Saturn, Inc. dba Kia of Cerritos, and Does 1 through 10. The complaint alleges that Plaintiff experienced defects and nonconformities to warranty with his purchase of a 2022 Kia EV6. (Subject Vehicle). (Complaint, ¶¶ 16-20.) The complaint asserts seven causes of action: (1) violation of Song-Beverly Consumer Warranty Act – breach of express warranty; (2) violation of Song-Beverly Consumer Warranty Act – breach of implied warranty; (3) failure to make available parts & literature; (4) violation of Business and Professions Code section 17200; (5) violation of Business and Professions Code section 17500; (6) negligent misrepresentation; and (7) negligent repair.

Legal Standard

Under Code of Civil Procedure section 2025.450, subd. (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subd. (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

Code of Civil Procedure section 2025.450, subd. (b)(2) provides requires the moving party to file a meet and confer declaration under Section 2016.040 "or, when the deponent fails to attend the deposition and produce the documents...a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) The meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel states that he attempted to follow up with defense counsel to schedule alternative dates. (Powell Decl., ¶ 4.) Therefore, Plaintiff adequately complies with the meet and confer requirement.

Discussion

Plaintiff moves to compel Defendant to produce its PMK for deposition with production of documents on the grounds that Defendant served meritless objections to the notice of deposition and did not provide alternative dates to schedule the deposition. This motion is unopposed.

On June 4, 2025, Plaintiff initially noticed a deposition of Defendant's PMK. (Powell Decl., ¶ 2.) Defendant served boilerplate objections to the notice on the grounds that the deposition was unilaterally set. (Powell Decl., ¶ 3.) Plaintiff then describes three follow up attempts he made to schedule a deposition in September or October of 2025; however, Defendant did not provide alternative dates. (Powell Decl., ¶ 4.)

Given that Plaintiff is entitled to depose Defendant's PMK and Defendant served boilerplate objections to the notice and then failed to provide reasonable alternative dates, the Court finds an order compelling the deposition of Defendant's PMK appropriate.

Matters for Examination

There are fourteen matters for examination at issue. The matters for examination seek information related to Defendant's communications to Plaintiff, repairs to the Subject Vehicle, and Defendant's policies and procedures. (Powell Decl., Exh. 1.)

The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiff provides matters for examination to guide Defendant in selecting a PMQ for deposition. Code of Civil Procedure section 2025.230 provides, in relevant part, that "[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent."

Here, the Court finds that the matters for examination are relevant to Plaintiff's claims and described with reasonable particularity. Therefore, this motion is granted as to Matters for Examination Nos. 1 through

14.

Requests for Production

The notice of deposition contains twenty-four requests for production of documents.

A request for production of documents in a deposition notice need only specify with reasonable particularity the materials or category of materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) Where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450 subd. (b)(1).) These facts must also be set forth in a separate statement filed by the moving party. (Cal. Rules of Court, rule 3.1345(a)(5).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.)

Plaintiff argues that the requests for production seek documents related to the repairs to and inspections of the Subject Vehicle, TSBs and recalls issued for the vehicle, Defendant's investigation of whether Plaintiff's vehicle should be repurchased, and Defendant's policies and procedures for investigating and handling customer complaints, requests for buyback, and complying with its statutory obligations.

Upon review of the requests for production, the Court finds that the requests for production are reasonably particularized and supported by good cause.

Accordingly, Plaintiff's motion to compel Defendant to produce its PMK for deposition with production of documents is GRANTED.

Defendant's PMK is ORDERED to appear for a deposition as to Matters for Examination Nos. 1-14 and Production of Documents Nos. 1-24 within 60 days of this Order. The parties shall meet and confer to determine the date, time, and location of the deposition. This date may be extended by agreement of the parties.

Sanctions

Plaintiff requests monetary sanctions against Defendant and its counsel of record.

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §2025.450, subd. (g)(1).)

The Court finds monetary sanctions warranted against Defendant and its counsel of record for failing to respond to efforts by Plaintiff to schedule a deposition. Plaintiff requests \$3,180 reflecting Plaintiff's counsel's hourly rate of \$500, 2 hours to draft the moving papers, 2 hours to review the opposition and reply, 2 hours to prepare for and appear for the hearing, and a \$60 filing fee as well as Plaintiff's paralegal's time spent meeting and conferring with defense counsel at a rate of \$150 for 0.8 hours. (Powell Decl., ¶ 6.) The Court finds this amount unreasonably excessive and deducts 3 hours of Plaintiff's counsel's time due to the lack of a timely opposition or reply and the simplicity of the issues. The Court also reduces time spent on meeting and conferring as it is unsupported.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the REDUCED amount of \$1,560 against Defendant and its counsel of record. Defendant and its counsel of record are ORDERED to pay this amount within 60 days of this Order.